

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	13-07-2026 15:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	13-07-2026 15:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	90 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Power
विभाग का नाम / Department Name	Contracts And Materials
संगठन का नाम / Organisation Name	Damodar Valley Corporation
कार्यालय का नाम / Office Name	Damodar Valley Corporation
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id : Buyer Email id: souvik.mondal@dvc.gov.in
कुल मात्रा / Total Quantity	1
वस्तु श्रेणी / Item Category	Procurement of one 5KV digital insulation test kit for Panchet Hydel Power Station, DVC
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Procurement of one 5KV digital insulation test kit
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Category not available on GeM for the text string uploaded by the buyer
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	Insulation Tester
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Certificate (Requested in ATC), Additional Doc 1 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	1
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Single Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	3 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 15 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई के लिए आरक्षित / Reserved for Make In India products

एमआईआई के लिए आरक्षित / Reserved for Make In India products	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

Single Tender

Single Tender Applicable	Yes
Reason	The sources of supply are definitely known and possibility of fresh source(s) beyond those being tapped is remote.
List of Seller Organization for participation	JOSTS ENGINEERING COMPANY LIMITED

1. Bid reserved for Make In India products: : Procurement under this bid is reserved for purchase from Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. However, eligible micro and small enterprises will be allowed to participate. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020 . In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

2. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any

purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

Procurement Of One 5KV Digital Insulation Test Kit For Panchet Hydrel Power Station, DVC (1 pieces)

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Pintu Ghosh	828206,Office of the Chief Engineer & Project Head, Damodar Valley Corporation, Panchet Dam, District-Dhanbad- 828206	1	90

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be (Increased quantity ÷ Original quantity) × Original delivery period (in days), subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

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Description of Services: Procurement of one 5KV digital insulation test kit for Panchet Hydel Power Station, DVC on source standardization basis.
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Buyer Added Bid Specific Terms and Conditions

A) **Detailed SUPPLY & TECHNICAL SPECIFICATION:**

5 KV Digital Insulation Resistance tester (5 KV Megger)

Technical Specifications

1. Voltage selection – 40V to 1KV in 10V steps, 1KV to 5KV in 25 V steps, With Enable Voltage Lock Option.
2. Instrument should have provision to operate in both modes i.e. (i) In AC 90-264 V Rms ,50/60Hz mains (ii) Internal rechargeable Battery mode
3. Rated analogue display resistance 100 K Ω to 10 T Ω .
4. Rated Digital Display Resistance 10 K Ω to 15 T Ω .
5. Instrument should display direct reading of voltage across the test piece when the test is in progress.
6. Instrument should display leakage measurement.
7. Short Circuit current 6 mA @ 5KV
8. Instrument should have Breakdown or 'Burn' mode
9. Instrument should have 8mA Interference Rejection, plus instrument should have additional filter of 10, 30 and 100,200 seconds time constant selectable.
10. Guard terminal should have at least 2% error guarding 500K Ω leakage with 100M Ω load
11. Insulation Resistance Measurement should be in Digital and Analogue with backlit display.

12. Instrument should have capability for 11 hours logging @5 sec interval as a internal memory with date/time stamp

13. Measurement Range

Insulation resistance range

Digital display 10 K Ω to 15 T Ω .

Analogue display 100K Ω to 10T Ω .

Current Measurement

0.01 nA to 6 mA

Capacitance Measurement

10nF to 50 μ F

Test time should be selectable from 1 second to 99 minutes 59 Seconds

Capacitor charging time should be $\leq$ 1.5 Seconds per mF to 5kV

Capacitor discharge time should be $\leq$ 120ms per mF to discharge from 5000V to 50 V

Voltage Measurement range:

30 to 660VDc or AC

0 to 5000V DC when testing

Mains Input voltage: 90-264 V, 50Hz.

14 The instrument should perform automatic tests and measure Insulation Resistance, current, capacitance, Polarization Index, Step voltage tests, DAR & Dielectric Discharge, Ramp Test.

Instrument should display direct reading of voltage across the test piece, PI value, and Dielectric discharge Value in terms of

The DD value defined as (in $\text{mAV}^{-1}\text{F}^{-1}$):

15. The Equipment shall be suitable for DC Battery operation and AC Main operation. The Battery supplied with tester should have max **2.4 hour charging time**, should be able to operate from main supply even with flat battery

16. The Equipment should be able to perform the live data streaming along **with real time graphing** , storage with the supplied software with the interface via **Bluetooth** & USB Cable.
17. Digital and software filter should be available in the instrument to remove induced noise.
18. Operating Temperature: -20°C to 55°C
Storage Temperature: -25°C to 65°C
- 19 **Safety** Should Conform to IEC 1010-1 (1995)
- 20 **Environmental Protection** Instrument should be rated to IP65
21. Instrument should have compliance to following Safety standards IEC1010-1 (1995), EN61010 (1995) to installation category IV, 600 V.
- 22 The equipment should have 1000V protection between all test terminal up to 3000m altitude, should have dedicated voltage measurement range to 600V
23. The Equipment should be portable.
- 24. Accessories:**
- (i) One 3m flexible dual insulated silicon lead-set with medium sized clips.
 - (ii) One 20m flexible dual insulated silicon lead-set with large sized clips.
 - (iii) Power lead
 - (iv) Calibration certificate
 - (v) Safety Warning Sheet
 - (vi) Product information sheet
- i) **PRICE BASIS:**
- PRICE:** The Contract Price shall be FIRM & FIXED during the entire execution of the Contract and shall not be subject to any variation except on account of Statutory Variation on direct transaction between the Employer (DVC) & the Contractor
- ii) **TAXES, LEVIES AND DUTIES shall be as below:**
- (a)** Except as otherwise specifically provided in the Contract, the Contractor shall bear a

and pay all taxes, duties, levies, cess, etc. and charges assessed on the Contractor, its Subcontractors or their employees by all municipal, state or national government authorities in connection with the Facilities in and outside of the country where the Site is located.

- (b) All taxes, duties, levies, royalties, fees, cess, etc in respect of the works, supply and all other services to be done by the Contractor as per the specifications of Bidding Documents and also taxes, duties, cess & levies as may be applicable on the materials used for the works, supply shall be to the contractor's account & included in the Contract Price. **The Contract price shall be inclusive of GST & all other taxes, duties, levies, royalty, cess, fees etc.** GST will be applicable as per Govt. of INDIA Guidelines.
- (c) However, if DVC pays any taxes, duties, levies, cess, etc directly to the concerned statutory authorities, the same will be deducted from contractor's bill.

iii) **MODE OF SUPPLY & DELIVERY PERIOD:**

- **Material to be supplied strictly as per bid specification**
- **The materials shall be delivered on own arrangement of the Supplier.**
- **Material supplied will always be accompanied with manufacturer's test if any and guarantee certificate (period of guarantee as stated in guarantee clause of this NIT) and it will also be tested at site prior to acceptance.**
- **All safety measures should have to be adopted by the bidder to avoid transit loss / damage.**
- **DELIVERY/COMPLETION PERIOD: Delivery period: 90 (Ninety) days from the date of issuance of Purchase Order.**
- **Delivery Location: DVC , Panchet, Jharkhand**
- **Documents to be furnished during delivery of material / finished product:**
 - a) **Manufacturer's Standard Guarantee/Warranty Certificate is to be furnished along the supply of materials. (period of guarantee as stated in guarantee clause of this NIT)**

- iv) **TOTAL COMPLETION PERIOD/ CONTRACT PERIOD:**
90 (Ninety) days from the date of issuance of Purchase Order.

v) **INSURANCE:**
Insurance:

Transit Insurance for supplied item will be covered by DVC Mega Risk Policy. Despatch intimation indicating booking details, transporter name& address is to be given to Controller of stores, Sr. Manager(E), PHPS for information to underwriter. However, party has to issue a letter to DVC intimating dispatch details for coverage of transit insurance. The address of underwriter is given below:

- vi) **Test Certificate:** Test certificate & Guarantee/warranty certificate of the material shall be supplied along with the material. The test certificate shall fulfill all the criteria of the specification.

vii) **A) PAYMENT TERMS:**

100% payment alongwith full GST at actual, subject to the limit as quoted for such item, will normally be made by the purchaser to the Vendor through NEFT/RTGS within 15 working days from the date of receipt of material at site and after inspection & acceptance thereof or from date of receipt of invoice whichever is later..

Note:

- a) The invoice /bill in triplicate, is to be raised in the name of the consignee and submitted to consignee with copies of receipted challan, guarantee certificate, acceptance

- ptance of SDPG. etc for initiating payment action
- b) No payment will be released till the acceptance of SECURITY DEPOSIT PERFORMANCE GUARANTEE by DVC.
- c) The payment will be made to the supplier through NEFT/RTGS within 15 days from the date of receipt of materials at DVC store and after satisfactory inspection & acceptance thereof by our concerned Engineer.
- d) Cost of Freight, Packaging & forwarding shall be paid/ reimbursed as per documentary evidence limited to as quoted against Freight, Packaging & forwarding charges in price schedule at GeM. Packaging & forwarding charges and Freight charge shall be included in quoted price.

B) PAYMENT PROCEDURES:

The Procedures to be followed in making application for, certifying and making payments shall be as follows:

1. Payment Schedule

1.1 Running bills (RA Bills) on the basis of periodic measurement shall be submitted by the Contractor to the concerned Engineer-in-Charge of DVC, who shall, after necessary checking, forward the same to the Accounts Officer for arranging payment.

2. Due Dates for Payment

Employer will make progressive payment as and when the payment is due as per the Terms of Payment. Progressive payment will become due and payable by the concerned Engineer-in-Charge of DVC within fifteen (15) days from the date of receipt of Contractor's bill/invoice/debit note by the Employer, provided the documents submitted are complete in all respective payment etc.

3. Mode of Payment

The payments shall be made direct to the Contractor by the Employer and no L/C shall be established by the Employer for such payments. Wherever technically feasible, such payments shall be made electronically only as per details of Bank Account indicated in the contract. In case of any changes to the bank account indicated in the contract, the contractor shall immediately inform the employer. The Contractor shall hold the employer harmless and employer shall not be liable for any direct, indirect or consequential loss or damage sustained by the bidder on account of any error in the information or change in Bank details provided to the employer in the prescribed form without information to employer duly acknowledged.

4. GST shall be reimbursed/ paid extra at actual as per prevailing rate limited to as quoted against submission of documentary evidence. The prevailing rate of GST shall be verified from relevant Govt. of India portal.

5. IT & other taxes, as applicable will be deducted from the bill as per rule

viii) **EPF & ESI: NA**

ix) **SECURITY DEPOSIT-CUM-PERFORMANCE GUARANTEE:**

For procurement up-to Rs. 1 Crore, security deposit shall be re

covered as Pro-rata deduction @ 3% from the RA bills and it will be released after Performance Guarantee period.

x) **L.D CLAUSE:**

As per General Terms & Conditions of GeM.

If the Seller/Service Provider fails to deliver any or all of the Goods/Services within the original/re-fixed delivery period(s) specified in the contract, the Buyer will be entitled to deduct/recover the Liquidated Damages for the delay, unless covered under Force Majeure conditions aforesaid, @ 0.5% of the contract value of delayed quantity per week or part of the week of delayed period as pre-estimated damages not exceeding 10% of the contract value of delayed quantity without any controversy/dispute of any sort whatsoever.

xi) **RISK AND PURCHASE CLAUSE:**

The Employer (DVC) reserves the right to purchase the material / spares/ equipment /service & works from elsewhere at the sole risk and cost of the Contractor and recover all such extra cost incurred by the Employer in procuring the material, service and works. The procedure to be followed is given below: -

- a) After the expiry of the specified date of delivery / completion period, if the Contractor fails to deliver the materials/ complete the work a notice will be given to the Contractor for delivering the material/ complete the work immediately.
- b) If the Contractor fails to deliver the material/complete the work, a final risk and cost notice will be served to the Contractor by registered post with A/D, clearly indicating that if he fails to deliver the materials/ complete the work within 7 days of the receipt of the letter, the same shall be outsourced from other sources at the risk and cost of the Contractor.
- c) The existing order has to be closed, and action will be initiated by the Employer for procurement / completion of work & services of the balance items/ portion. While taking such action the defaulting Contractor may not be given an opportunity against fresh enquiry/limited tender.
- d) If it is found that price has come on the higher side, then the difference between the original price and the new price will be recovered from the Contractor.
- e) For the purpose of recovery of the amount, unpaid amount / security deposit by the way of BG /eBG as provided by the Contractor will be adjusted first. If there is any balance left to be recovered, the Contractor should be informed to deposit the money at the earliest.
- f) If he fails to deposit the balance amount no further enquiry will be given as per banning procedure of DVC.
- g) In case the amount is considerable, legal action may be considered by the Employer.

Alternatively, the Employer (DVC) may short close the Order stating the reason for not resorting to risk purchase clause.

In the event of recourse to alternatives as mentioned above, the Employer (DVC) will have the right to re-purchase the stores or complete the work, to meet urgency in requirement caused by Contractor's failure to comply with the schedule of delivery or completion of the work or services irrespective of the fact whether

the materials / equipments/ work/ services are similar or not.

xii) **QUALITY ASSURANCE PLAN: As per GCC.**

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xiii) All suits arising out of this enquiry and subsequent Purchase Order, if any, are subject to jurisdiction in the city of Kolkata only.

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xiv) **GURANTEE / WARRANTY/DEFECT LIABILITY PERIOD:**

Warranty/Guarantee: The successful bidder is required to submit Warranty/Guarantee certificate valid for a period of at least **12 months** from the date of commissioning or **18 months** from the date of supply of materials, whichever is earlier, along with the delivery challan/bill, against any manufacturing defect / poor workmanship / poor performance, etc, in respect of the supplied items. In case, any deficiency is found in respect of supplied materials during this period, the same shall be repaired / rectified / replaced by the supplier at free of cost.

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xv) **Inspection:**

All materials to be manufactured/ supplied by you against this enquiry shall be subject to inspection after arrival at site, check and/or test by the purchaser or his authorized representative. If upon delivery, the material does not meet the specifications, the material shall be rejected, and you will be intimated for replacement. In such cases all expenses including to-and-fro freight charges etc., if required shall be to your account. One demonstration season related to operation of 5KV merger should be arranged by the vendor at PHPS site.

xvi) **SUB-LETTING & ASSIGNMENT:**

The party shall not be allowed to sublet the work as a part or as a whole to any other party. In requirement of work the party may sublet some work if permitted by DVC authority.

Subletting of the contract will be guided as detailed in the Clause No.-23 of DVC's General Conditions of Contract (GCC) & Debarment Policy of DVC.

xvii) **CONSIGNEE/ Officer -in-Charge with Address/ Bill Passing Authority**

:

DGM/his authorised representative at DVC, Panchet , Jharkhand

Consignee: Engineer in Charge , DVC, Panchet , Jharkhand

xviii) **PAYING AUTHORITY:**

Sr. Manager (Finance), DVC,.

Bill / Invoice for store material to be submitted by the supplier to the CONSIGNEE/ Officer -in-Charge along with all necessary documents

nts (e.g. Guarantee Certificate / Copy of GST Invoice / Copy of Despatch Clearance / Copy of receipted challan for materials, if any etc.)

DVC GST NO.:20AABCD0541M1Z5 for Jharkhand & 19AABCD0541M1Z0 for West Bengal.

xix) **PENALTY CLAUSE:**

Not applicable.

xx) **TERMINATION:**

Termination shall be guided as per clause no. 24 under OPTIONAL TERMS & CONDITIONS OF CONTRACT of GCC of DVC.

xxi) **FORCE MAJEURE:**

As per GCC

xxii) **BILL TRACKING SYSTEM:**

It has been advised to the bidders that all the bill/invoice related to P.O./W.O. must be processed through DVC Portal with following link . Detailed guidelines related to Vendor Registration & Processing of Bill for Vendor Bill Tracking are available in the DVC portal under PROCUREMENT. (under PROCEREMENT tab of DVC homepage <https://www.dvc.gov.in/>).

The Vendors on award of contract need to register themselves & submit their contract related bills online. After submission of the bill, a cover letter containing unique bill ID shall be generated which must be submitted to DVC along with other payment related documents.

xxiii) **EPF & ESI PROVISION: NA**

xxiv) **Price Break UP: Final Price break-up submitted by bidder shall be part of the contract.**

xxv) **Deviation in the technical specification by offering the superior quality material at no separate or additional cost implication to DVC will be accepted subject to due intimation by the vendor and thereafter approval by DVC.**

xxvi) **GOVERNING LAWS:**

The Contract shall be governed by and interpreted in accordance with laws in force in India. The Courts of Kolkata shall have exclusive jurisdiction in all matters arising under the Contract.

xxvii) **SETTLEMENT OF DISPUTES AND ARBITRATION:**

As per Clause no. 20 of Additional terms & Conditions of contract of GCC.

xxviii) **Bidders are requested to go through Bid document comprising following of documents before submission of offers in GeM Portal.**

- a) GeM's Bid Document.
- b) Buyer Added Bid Specific Terms and Conditions.
- c) Buyer Added Bid Specific ATC document.
 - 1. Invitation for Bids (IFB) -BOQ & SOW & Technical Specification
 - 2. TECHNO-COMMERCIAL Terms & Conditions of Contract
 - 3. General Conditions of Contract (GCC) and Debarment Policy
 - 4. Instruction to Bidder (ITB)
 - 5. Bid Forms and Procedures (BFP)
- d) GeM's General Terms and Conditions.

NOTE:

- 1. Buyer Added Bid Specific Terms and Conditions as above and all other terms and conditions of "Buyer Added Bid Specific ATC document" shall supplement/amend the corresponding clauses of DVC's General Conditions of Contract (GCC). Wherever there is any conflict, the provisions in Buyer Added Bid Specific Terms & Conditions and all other terms & conditions of GeM bid document shall prevail over those in the DVC's GCC. (Copy of GCC attached in Volume-V of Buyer Added Bid Specific ATC" Document.-click on the link to download the file)
- 2. Other Terms & Conditions shall be covered as per the General terms & conditions (GTC) of GeM & General Conditions of Contract (GCC) of DVC which are not specifically mentioned in the Bid Document.
- 3. If there is any conflict between the General Conditions of Contract (GCC) of DVC and General terms & conditions (GTC) of GeM then General Terms & Conditions (GTC) of GeM shall prevail over General Conditions of Contract (GCC) of DVC

xxix) **Submission of Documents:** As per formats given in "Vol-VII - Check List (FOR SUBMISSION/UPLOADING OF DOCUMENTS) & Vol-VIII: Bid Forms and Procedures (BFP)" of Buyer Added Bid Specific ATC" Document.

Please click on the below given link to open “Buyer Added Bid Specific ATC” Document. (please go through it).

3. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope

of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---